

The Assam Court-Fees (Amendment) Act, 1963

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State of Assam - Act

The Assam Court-Fees (Amendment) Act, 1963

ASSAM

India

The Assam Court-Fees (Amendment) Act, 1963

Act 8 of 1963

Published on 23 April 1963

Commenced on 23 April 1963

[This is the version of this document from 23 April 1963.]

[Note: The original publication document is not available and this content could not be verified.]

The Assam Court-Fees (Amendment) Act, 1963

Assam Act

No. 8 of 1963

Last Updated 11th February, 2020

Received the assent of the Governor on the 23rd April, 1963, published in the Assam Gazette, Extraordinary, dated the 26th April, 1963.

An Act further to amend the Court-Fees Act, 1870 in its application to Assam.

Preamble. - Whereas it is expedient further to amend the Court-Fees Act, 1870 (Act 7 of 1870), hereinafter called the Principal Act, in its application to Assam, in the manner hereinafter appearing;

It is hereby enacted in the Fourteenth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Court-Fees (Amendment) Act, 1963.

(2)

It extends to the whole of Assam.

(3)

It shall come into force with effect from the First day of April, 1963.

2.

Amendment of Schedules I and II of the Act 7 of 1870.

- In the Principal Act-

(1)

In Schedule I, for Article numbers, 6, 7, 8 and 9 the following shall be substituted, namely:-

Number

Proper Fee

"6.

Copy of translation of a judgment or order not

being, or having the force of, a decree

When such judgment or order is passed by any

Civil Court other than a High Court, or by the Presiding Officer

of any Revenue Court or Officer, or by any other Judicial or

executive Authority-

(a) If the amount or value of the

subject-matter is fifty or less than fifty rupees

One rupee

(b) If such amount or value exceeds fifty

rupees

Two rupees

When such judgment or order is passed by a High

Court

Four rupees.

7.

Copy of a decree or order having force of a decree

When such decree or order is made by any Civil

Court other than a High Court, or by any Revenue Court-

(a) If the amount or value of the

subject-matter of the suit wherein such decree or order is made

is fifty or less than fifty rupees

Two rupees

(b) If such amount or value exceeds fifty

rupees

Three rupees.

When such decree or order is made by a High

Court

Seven rupees and fifty naye paise.

8.

Copy of any document liable to stamp-duty under

the Indian Stamp Act, 1899 (Act 2 of 1899), when left by any

party to a suit or proceeding in place of the original withdrawn

(a) When the stamp-duty chargeable on the

original does not exceed one rupee

The amount of the duty chargeable on the

original.

(b) In any other case

One rupee.

9.

Copy of any revenue or judicial proceeding or order not otherwise provided for by this Act, or copy of any account, statement, report or the like, taken out of any Civil or Criminal or Revenue Court or Office, or from the office of any chief officer charged with the executive administration of a Division

For every three hundred and sixty words or fraction of three hundred and sixty words

One rupee."

(2)

For Schedule II, the following shall be substituted, namely:

"Schedule II

Fixed Fees

Number

Proper Fee

1.

Application or petition

(a) When presented to any officer of the Customs or Excise Department or to any Magistrate by any person having dealings with the Government, and when the subject-matter of such application relates exclusively to those dealings; or

Fifty naye paise

when presented to any Municipal Board or other local authority constituted under any Act for the time being in force for the conservancy or improvement of any place, if the application or petition relates solely to such conservancy or improvement; or

when presented to any Civil Court other than a principal Civil Court of original jurisdiction, or to any Court of Small Causes constituted under Act No. 11 of 1865 or under Act No. 16 of 1868, Section 20 or to a Collector or other officer of revenue in relation to any suit or case in which the amount or value of the subject-matter is less than fifty rupees; or when presented to any Civil, Criminal or Revenue Court, or to any Board or executive officer for the purpose of obtaining a copy or translation of any judgment, decree or order passed by such Court, Board or officer, or of any other document on record in such Court or Office.

(b) When presented in a Regional Transport Authority or State Transport Authority containing a prayer for permit for Contract Carriage, Stage Carriage, Private Carrier or Public Carrier or for any other purpose.

Seven rupees and fifty naye paise

(c) When containing a complaint or charge of any offence other than an offence for which police officer may, under the Criminal Procedure Code, arrest without warrant and presented to any Criminal Court; or

In the case of a complaint or charge of an offence presented to a criminal court or in the case of an application or petition presented to any officer of land revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement-one rupees and fifty paise and in other case one rupee.

when presented to a Civil, Criminal or Revenue Court, or to a Collector or any revenue officer having jurisdiction equal or subordinate to a Collector, or to any Magistrate in his executive capacity, and not otherwise provided for by the Act, or to deposit in Court as revenue or rent; or for determination by a Court of the amount of compensation to be paid by a landlord to his tenant; or

when presented to a Collector or other officer making a settlement of land revenue, or to a Board of Revenue, or a Commissioner of Revenue, relating to matters connected with the assessment of land or the ascertainment of rights thereto or interest therein, if presented previous to the final confirmation of such settlement; or

when presented to any officer of land revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement.

(d) When presented to a Chief Commissioner or other Chief Controlling Revenue or Executive Authority, or to a Commissioner of Revenue or Circuit, or to any chief officer charged with the executive administration a Division and not otherwise provided for by this Act.

Three rupees.

(e) When presented to a High Court.

Six rupees.

(f) When presented to any officer containing prayer for settlement of fishery, ferry, forest produce, forest mahals, elephant mahals, or an officer giving terms for acceptance of Government for any construction or an application for a permit or licence to deal in controlled commodities.

Seven rupees and fifty naye paise.

(g) When presented to an Appropriate Revenue Authority for demarcation of land-

(i) when the area of such land does not exceed one hectare

Two rupees.

(ii) for each subsequent area of one hectare or part thereof

One rupee.

1-A.

Application to any Civil Court that records may be called for from another Court

When the Court grants the application and is of opinion that the transmission of such record involves the use of the post.

One rupee and fifty naye paise in addition to any fee levied on the application under CT (a), Clause (c) or Clause

(e) of Article 1 of this Schedule.

2.

Application for leave sue as a pauper

One rupee.

3.

Application for leave to appeal as a pauper

(a) When presented to a District Court.

Two rupees.

(b) When presented to a Commissioner or a High Court.

Three rupees.

4.

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5.

Plaint or memorandum of appeal in a suit to establish or disprove a right of occupancy

6.

Bail-bound or other instrument of obligation given in pursuance of an order made by a Court or Magistrate under any section of the Code of Criminal Procedure, 1898 (Act 5 of 1898) or the Code of Civil Procedure, 1908, (Act 5 of 1908) and not otherwise provided for by this Act

One rupee.

7.

Undertaking under Section 49 of the Indian Divorce Act, 1869 (Act 4 of 1869)

8.

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9.

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10.

Mukhtarnama or Wakalatnama

When presented for the conduct of any one case-

(a) to any Civil or Criminal Court other than a High Court, or to any Revenue Court, or to any Collector or Magistrate, or other executive officer except such as are mentioned in Cls. (b) and (c) of this number

One rupee.

(b) to a Commissioner of Revenue, Circuit or Customs Officer or to any officer charged with the executive administration of a Division, not being the Chief Revenue or Executive Authority

Two rupees and fifty naye paise.

(c) to a High Court, Chief Commissioner, Board of Revenue, or other Chief Controlling Revenue or executive authority or an appellate authority prescribed under the Motor Vehicles Act, 1939 (Act 4 of 1939) or to an appellate authority prescribed under the Assam Sales Tax Act, 1947 (Assam Act 17 of 1947).

Five rupees.

11.

Memorandum of appeal when the appeal is not from a decree or an order having the force of a decree, and is presented

(a) to any Civil Court other than a High Court, or to any

Revenue Court or executive officer other than the High Court or Chief Controlling Revenue or Executive Authority except an authority specified in Clause (b)

Three rupees.

(b) to an Excise Appellate Authority under Rule 340 of the Assam Excise Rules

Fifteen rupees.

(c) to a High Court or Chief Commissioner, or other Chief Controlling Executive or Revenue Authority except an authority prescribed in Clause (b)

Ten rupees.

(d) to an Excise Appellate Authority under Rule 341 of the Assam Excise Rules

Fifty rupees.

(e) to a High Court in Miscellaneous revenue matters except

(f) below or to an appellate authority prescribed under the Motor Vehicles Act, 1939 (Act 4 of 1939)

Fifteen rupees.

(f) to a High Court in appeal and revision matters arising out of settlement of fisheries-

(i) when the bid money is below ten thousand rupees

Fifteen rupees

(ii) when the bid money is above ten thousand rupees but below twenty thousand rupees

Twenty-five rupees.

(iii) when the bid money is above twenty thousand rupees

Thirty rupees.

12.

Caveat

Ten rupees.

13.

Application under Act No. 10 of 1859, Section 26, or Bengal Act No. 6 of 1862, Section 9, or Bengal Act No. 8 of 1869, Section 37

Five rupees.

14.

Petition in suit under the Native Converts' Marriage Dissolution Act, 1866 (Act 21 of 1866)

Five rupees.

15.

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16.

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17.

Plaint or memorandum of appeal in each of the following suits:

(i)

to alter or set aside a summary decision or order of any of the Civil Courts not established by Letters Patent or any Revenue Court;

(ii)

to alter or cancel any entry in a register of the names of
proprietors of revenue-paying estates
Fifteen rupees.

(iii)

to obtain a declaratory decree where no consequential relief
is prayed

Twenty rupees

(iv)

to set aside an award

Fifteen rupees.

(v)

to set aside an adoption

Twenty rupees.

(vi)

every other suit where it is not possible to estimate at a
money-value the subject-matter in dispute, and which is not
otherwise provided for by this Act.

Fifteen rupees.

18.

Application under under Section 14 or Section 20 of the
Indian Arbitration Act, 1940 (Act 10 of 1940), for a direction
for filing an award or for an order for filing an agreement

When presented to a Munsif's Court

Fifteen rupees.

When presented to any other Court

Fifty rupees.

19.

Agreement in writing stating a question for the opinion of
the Court under the Code of Civil Procedure, 1908 (Act 5 of
1908)

Fifteen rupees

20.

Every petition under the Indian Divorce Act, 1869 (Act 4 of
1869) except petitions under Section 44 of the same Act, and
every memorandum of appeal under Section 55 of the same Act.

Twenty rupees.

21.

Plaint or memorandum of appeal under the Parsi Marriage and
Divorce Act, 1865 (Act 15 of 1865).

Twenty rupees

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